

THIRD SESSION – TENTH PARLIAMENT

REPORT

OF THE JOINT PORTFOLIO COMMITTEES ON JUSTICE, LEGAL AND PARLIAMENTARY AFFAIRS; WOMEN AFFAIRS, COMMUNITY AND SMALL AND MEDIUM ENTERPRISES DEVELOPMENT; LOCAL GOVERNMENT AND PUBLIC WORKS; DEFENCE; YOUTH EMPOWERMENT, DEVELOPMENT AND VOCATIONAL TRAINING; HOME AFFAIRS, SECURITY SERVICES AND WAR VETERANS AFFAIRS; THEMATIC COMMITTEES ON HUMAN RIGHTS; PEACE AND SECURITY; AND GENDER AND DEVELOPMENT.

ON

THE ANALYSIS OF THE CONSTITUTION OF ZIMBABWE AMENDMENT (NO. 3) BILL, 2026

PRESENTED TO PARLIAMENT JUNE 2026

1.0 INTRODUCTION

The Constitution of Zimbabwe (Amendment) Bill (No. 3), 2026 (H.B. 1, 2026) was officially published in the Government Gazette on 16th February, 2026. Accordingly, Parliament invited the members of the public to express their views on the proposed Bill in public meetings and through written submissions in accordance with section 328(4) of the Constitution. The Bill was referred to the Portfolio Committee on Justice, Legal and Parliamentary Affairs. Recognising the Bill's cross-cutting implications for governance, gender equality, human rights, traditional leadership among other issues, Parliament constituted a joint committee in order to ensure a comprehensive review of the Bill. The Joint Committee comprised the Portfolio Committees on Women Affairs, Community and Small and Medium Enterprises Development; Defence, Home Affairs, Security Services and War Veterans Affairs; Local Government, Public Works and National Housing; and Youth Empowerment, Development and Vocational Training as well as Thematic Committees on Human Rights; Peace and Security and Gender and Development.

In fulfilment of Section 141 of the Constitution of Zimbabwe which mandates Parliament to facilitate public involvement in its legislative processes, the Joint Committee embarked on nationwide public consultations. These consultations were designed to ensure that the legislative process is informed by the lived experiences, aspirations and democratic concerns of the Zimbabwean citizenry.

2.0 OBJECTIVES

The objectives of the analysis of the Bill were:

a) To assess whether the Bill is in the interest of the public in order to ensure broader consensus.
b) To check whether the proposed provisions are consistent with other provisions of the Constitution.
c) To consider the impact of the Bill.
d) To check whether the proposed amendments align with regional and international best practices.

3.0 METHODOLOGY

To ensure a rigorous and inclusive consultative process, the following methodology was employed:

3.1 After the *gazetting* of the Bill, Parliament immediately began receiving written submissions made directly to Parliament and through emails from the public until 18th May, 2026.

3.2 Parliament also deployed eleven teams drawn from the eight Parliamentary Committees to cover each of the administrative districts in all the country's ten provinces. Public hearings were held in the districts from 29 March to 1 April 2026. There was real-time recording of the submissions from participants during the hearings. Physical documents submitted by the public during the public hearings were collected at every venue to accommodate those who did not get an opportunity to speak.

WRITTEN SUBMISSIONS

	Sub-Totals	**Number of Submissions in Support of the Bill**	**Number of Submissions against the Bill**
Written Submission to Parliament	**470 117**	469 040	1077
Written Submissions received During Public Hearings	**67 688**	67 302	386
Written Submissions via emails	**2 232**	760	1472
Grand Totals	**540 037**	**537 102**	**2 935**

For a detailed breakdown on attendance and written submission received during and after public hearings, see Annexure.

3.3 To fulfill the constitutional requirement under Section 157(4) which provides that *no amendments may be made to the Electoral Law or its subsidiary legislation unless the Zimbabwe Electoral Commission (ZEC) has been consulted and its recommendations duly considered*, the Commission presented its recommendations to the joint Committee on 14 May 2026. During the same meeting, the Zimbabwe Gender Commission and the Council of Chiefs also presented their views on the Bill.

3.4 Thereafter, the Joint Committee conducted five meetings to deliberate on the oral and written submissions before crafting its draft report which was considered and adopted.

3.5 To that end, the Committee expresses its profound gratitude to the people of Zimbabwe who took their time to attend the public hearings held in the administrative districts and present their written submissions on the Bill.

4.0 Committee's findings

4.1 Clause 2: Transferring of voter registration and management of the voters' roll from the Zimbabwe Electoral Commission to the Registrar-General

The majority of submissions strongly supported transferring the responsibility for voter registration, as well as compiling and maintaining the voters' roll, from ZEC to the Civil Registry Department (Registrar-General). Participants argued that the Registrar-General is uniquely positioned to maintain an accurate, up-to-date voters' roll, effectively preventing the prolonged inclusion of deceased or non-existent individuals.

Given that the Registrar-General already serves as the custodian of vital civil records, including birth and death certificates, as well as national identity data, the public noted that this transition would enhance administrative efficiency, accuracy, and centralized accountability. Furthermore, it would eliminate a duplication of roles, minimize data management inconsistencies, and ultimately strengthen the integrity and credibility of the voters' roll. This approach also aligns with international benchmarks, where civil registries routinely manage voter registration data. Ultimately, this reallocation of duties would allow ZEC to concentrate more effectively on its core mandates of voter education and election management.

The minority view opposed transferring the voters' roll to the Registrar-General, recalling that management of the roll had previously been stripped from that office due to serious concerns over credibility and manipulation. The minority argued that ZEC is far better suited to manage the roll, raising several key concerns regarding the proposed transfer. It was submitted that as a government department, the Registrar-General lacks the constitutional safeguards designed to protect institutional independence, expertise and integrity. Shifting this responsibility risks increasing executive influence and undermining the neutrality of the electoral process. In addition, fragmenting the responsibilities of electoral management compromises accountability, which could severely damage both public trust and international credibility. Furthermore, entrusting voter registration to independent commissions aligns with established best practices across other SADC countries. It was submitted that the significant financial investments already made into ZEC's biometric voter registration systems serve as a compelling reason to maintain the current structure rather than introducing an inefficient administrative shift.

During consultations with ZEC, the Committee was informed about the potential occurrence of fragmented roles among institutions. It further underscored the need for clear legislated timelines spelling out when the voters roll will be availed to the electoral body. ZEC had migrated from the ward based to polling station-based voting as well as biometric registration of voters and hoped that these milestones will be maintained if this function is transferred to the Registrar General. In its humble submission, it had recommended that the status quo should be maintained.

4.1.2 Committee's Observations

The Committee noted that leveraging on vital civil records provides a distinct technical advantage in maintaining an accurate voters' roll, while simultaneously acknowledging legitimate concerns surrounding the need for institutional independence for the electoral body. Furthermore, the Committee observed the significant investments already made by ZEC, particularly the acquisition of biometric equipment for effective voter registration and also the poll-based voting system which was introduced in 2018.

4.1.3 Committee's Recommendation

The Committee recommends the adoption of Clause 2 to decisively address historical challenges where deceased individuals have remained on the voters' roll.

4.2 Clause 3: Changing the election of the President from a direct public vote to election by Parliament.

The majority of submissions strongly favoured the amendment, arguing that the proposed model would foster greater collaboration and mutual confidence between the Executive and the Parliament, ultimately enhancing governance and policy alignment. They emphasised that electing the president through Parliament would substantially reduce the immense financial costs of organising nationwide presidential elections. Furthermore, they noted that past elections had been marred by political tension, violence and contestation especially in respect of results for Presidential elections, issues that would be mitigated or eliminated by narrowing the electorate to directly elected representatives.

Supporters pointed to successful continental precedents, noting that nations like South Africa and Botswana utilise this system to achieve greater political stability, minimise electoral expenses and robust institutional accountability. Back home, they observed that an identical model was already successfully utilised at the local government level, where mayors are elected by sitting councillors, proving the system's practicality and familiarity within the country's existing governance structures. Finally, they argued that electing the President through Parliament remains fully consistent with Section 88(1) of the Constitution, which states that "executive authority derives from the people of Zimbabwe and must be exercised in accordance with this Constitution", because citizens would continue to exercise their democratic will through their elected representatives, reviving a legitimate constitutional practice utilised between 1980 and 1990. Given that Parliament, in terms of section 97 of the Constitution has a role to impeach the President, they indicated that it was consistent for it to elect the President.

Conversely, a minority of submissions opposed the amendment, viewing the shift as a retrogressive step that would dismantle the democratic milestones achieved since independence by undermining the fundamental principle of "one person, one vote." Dissenting voices argued that restricting the presidential vote exclusively to Members of Parliament would effectively circumvent the will of the broader electorate, fundamentally altering the source and character of executive legitimacy. From their perspective, removing the direct vote represents an erosion of democratic participation and a direct infringement on every citizen's constitutional right to free, fair and regular elections with regard to the election of the President.

4.2.1 Committee's Observations

The Committee noted that since Section 97 of the Constitution vests the power to remove the President in Parliament; therefore, Parliament should ordinarily possess the authority to elect the President. The Committee is convinced that adopting a legislative appointment model would significantly reduce the fiscal burden associated with direct presidential elections. Furthermore, this approach would bolster political stability by minimizing contentious electoral disputes which have characterised previous presidential elections while firmly anchoring executive accountability within representative democratic institutions.

4.2.2 Committee's Recommendation

Informed by the observations, the Committee strongly recommends the adoption of Clause 3, thereby mandating Parliament to elect the President.

4.3 Clauses 4, 9 and 10: Extension of the electoral cycle of the President and Members of Parliament from five to seven years and its application to the incumbent.

The majority of public submissions favoured the adoption of longer electoral cycles, primarily because reducing the frequency of elections mitigates both the immense fiscal burden on the state and the disruptive "perpetual campaign mode" that frequently derails governance and development. The majority argued that extended electoral cycles defuse the political toxicity inherent in election seasons, providing government with the necessary time horizon to fully implement long-term projects while ensuring policy stability and continuity. They noted that developmental activities routinely slow down or halt during election periods as national focus shifts entirely toward political processes. Furthermore, submissions pointed out that extended mandates are not unprecedented globally, citing Egypt's six-year presidential cycle and Azerbaijan's seven-year electoral cycle as successful examples.

Conversely, the minority submissions contended that in a democratic society, leaders must remain directly elected by the populace, arguing that structural constitutional changes of this magnitude should be subjected to a national referendum to guarantee broad public participation and democratic legitimacy. They argued that longer electoral cycles disenfranchise citizens and weaken executive accountability by concentrating power within political elites. Extending the electoral cycle was viewed as diluting the democratic cycles that keep leadership answerable to the public, as in shorter terms the electorate swiftly remove underperforming public officials. The minority also viewed the proposed amendment as a direct violation of Section 328(7) of

the Constitution, which explicitly prohibits any amendment extending a term of office from benefiting the incumbent holder of that office.

4.3.1 Committee's Observations

The Committee observed that, major developmental projects, particularly those yielding the most profound socioeconomic impacts on the populace, inherently require extended timelines to reach full implementation and completion. Members further noted that global jurisdictions utilizing longer electoral mandates consistently exhibit greater political stability and achieve more meaningful, sustained progress in their national development agendas. While the Committee holds the view that a ten-year term would be ideal to maximize these developmental benefits, a balanced compromise is necessary to align with public feedback and institutional realities.

4.3.2 Committee's Recommendation

Consequently, the Committee recommends the adoption of Clauses 4, 9, and 10, thereby extending the electoral cycle for the President and Parliament to seven years.

4.4 Clause 5: Removal of reference to the "first" Vice-President for consistency.

Public submissions were entirely unanimous in their support of the proposal to eliminate hierarchical distinctions between the Vice Presidents. The public observed that utilizing the uniform designation of "Vice President", without hierarchical stratification, promotes a sense of equality within the presidium. This structural alignment is anticipated to foster greater political unity and enhance the principles of collective leadership at the highest level of executive government.

4..4.1 Committee's Recommendation

The Committee concurs with submissions and recommends that the Clause should be adopted as presented.

4.5 Clause 6: Provision for Vice President to be elected by Parliament in the event of a vacancy, removing automatic succession.

The public submissions were once again unanimous in concluding that the proposed amendment represents a practical, cost-saving measure. Stakeholders emphasised that this mechanism effectively averts the prohibitive financial expenses associated with staging mid-

term presidential elections, while simultaneously safeguarding national stability by immediately closing any governance or succession vacuum that might otherwise arise.

4.5.1 Committee's Recommendation

The Committee concurs with the public's views and recommends that the Clause should be adopted as presented.

4.6 Clause 7: Raising the qualifications for appointment as Attorney-General to those required of a Supreme Court Judge.

The Committee received a diverse range of submissions regarding the proposed amendment, with the clear majority expressing strong support for the measure. The majority argued that aligning the qualifications of the Attorney General with those of a Supreme Court judge provides a vital safeguard for the office. They emphasized that such stringent criteria would guarantee that the appointee possesses the highest calibre of legal expertise, professional competence, and personal integrity. Consequently, this elevated standard is expected to significantly improve the quality of legal counsel provided to the Government and substantially strengthen the state's capacity to handle complex constitutional and legislative affairs.

On the contrary, the minority view raised concerns that the amendment could overly restrict the recruitment process. Dissenting submissions cautioned that establishing such elevated prerequisites would inevitably narrow the pool of eligible candidates, potentially excluding otherwise capable legal professionals from consideration.

4. 6. 1 Committee's Recommendation

Having carefully weighed both perspectives, the Committee stands in alignment with the majority submissions. It recognizes that the long-term benefits of securing top-tier legal and constitutional stewardship for the nation outweigh the risks of a more restrictive selection pool. Accordingly, the Committee recommends the clause for adoption without amendment.

4.7. Clause 8: Increase in the Membership of Senate from 80 to 90, by including 10 Presidential appointees

The proposed increase in Senate membership garnered a strong majority of support from public submissions. The majority argued that expanding the chamber would inject vital specialised knowledge and diverse professional expertise into the legislative process. Furthermore, the

public noted that a larger membership would broaden the pool of qualified individuals available for Ministerial appointments. They also view the additional ten members as necessary to bridge political and social divides, by incorporating non-partisan perspectives into governance, the amendment is, therefore, expected to elevate the quality of decision-making and foster greater national cohesion.

In contrast, the minority submissions expressed reservations, cautioning that increasing membership could undermine the Senate's independence and compromise its crucial role in holding the Executive accountable. Dissenting voices warned that the shift might weaken the chamber's representative character and create a public perception of excessive Executive influence over the legislative branch. Additionally, they argued that the amendment could result in a Senate composition disproportionate to the outcomes of the popular voting process, thereby eroding its democratic legitimacy.

4.7.1 Committee's Recommendation

After thorough consideration of both the public enthusiasm for enhanced expertise and the expressed concerns regarding institutional balance, the Committee finds that the potential benefits to governance and national unity were compelling. Consequently, the Committee recommends the clause for adoption.

4.8 Clauses 11, 12 and 13: Establishment of the Delimitation Commission, Transfer of Delimitation Functions from ZEC to the New Commission

The majority of submissions strongly favoured the establishment of a separate Delimitation Commission, arguing it would significantly alleviate the heavy workload currently borne by the ZEC. The majority believed that a dedicated entity would foster greater fairness, transparency and accessibility throughout the electoral process. Furthermore, they emphasized that such an institutional split would cultivate technical specialisation in the complex task of drawing constituency boundaries, thereby directly addressing historical shortcomings in ZEC's handling of previous delimitation exercises.

On the other hand, the minority contributions raised concerns regarding institutional independence and public trust. They cautioned that transferring the delimitation mandate away from ZEC might weaken the primary electoral management body and spark fears of political meddling in electoral affairs. To support their argument, they pointed to regional democratic

standards, specifically the SADC Principles and Guidelines Governing Democratic Elections, which strictly emphasise the need to protect electoral management bodies from Executive control.

4.8.1 Committee's Observations

The Committee observes that past delimitation exercises managed by ZEC did encounter notable challenges, which underscores the merit of a specialised body. However, the Committee highlights the absolute necessity for meticulous coordination between ZEC and the newly proposed commission to guarantee a seamless transfer of roles and operational data.

Furthermore, in alignment with a direct submission from ZEC itself, the Committee agrees that the new body's title should omit the word "**Electoral**." This linguistic distinction is crucial to clearly separate its specific boundary-drawing mandate from ZEC's broader, overarching electoral responsibilities.

4.8.2 Committee's Recommendation

Having carefully balanced the need for technical specialization against the imperative of safeguarding institutional independence, the Committee recommends the adoption of Clauses 11, 12 and 13 to establish a dedicated boundary-drawing authority. To ensure absolute clarity regarding its mandate, the Committee further recommends that this new entity be formally named the **Zimbabwe Delimitation Commission**.

4.9 Clause 14 – Jurisdiction of the Constitutional Court

The majority of submissions strongly supported extending the Court's jurisdiction beyond strictly political disputes to encompass matters of significant public importance. They argued that this expansion would greatly broaden access to justice and ensure that pressing national issues receive timely, definitive resolutions. Furthermore, stakeholders believed this shift would substantially enhance the Court's vital role as a primary guardian of constitutional rights.

On the contrary, the minority submissions raised concerns that broadening the Court's purview would trigger an unmanageable increase in its workload, ultimately leading to case backlogs and judicial delays. Some also expressed concern that this shift might inadvertently de-

prioritise specialised knowledge, incentivising the selection of judges with general legal expertise over those with deep specialisations in constitutional law and human rights.

4.9.1 Committee's Observations

The Committee observed that apprehensions regarding a crippling workload, systemic backlogs, and severe delays are unfounded and unsupported by empirical data. While an expanded jurisdiction will undeniably increase the volume of cases brought before the Court, the Committee notes that this does not automatically translate into judicial delays. Rather, the restructuring will effectively increase the number of available judicial levels, optimizing the allocation of legal resources and maintaining efficiency.

The Committee observed that there would be problems to do with the jurisdiction of the Supreme and Constitutional courts which may eventually need to compete in terms of which matters can be finalised by which court. There will also be a problem to do with the hierarchy of the two courts making it difficult to determine which court holds final authority. If the Constitutional and Supreme Court interpret laws differently, lower courts are left confused about which legal precedence binds them.

4.9.2 Committee's Recommendation

The Committee recommends for the adoption of the clause with an amendment to clarify the hierarchy of the two courts.

4.10 Clause 15: Amendment of Section 180 (Appointment of Judges)

The majority of submissions supported the proposed amendment to vest the appointment of judges in the President, to be exercised in consultation with the Judicial Service Commission (JSC). They expressed the view that this mechanism would strengthen judicial independence and streamline the selection process by eliminating perceived inefficiencies associated with current procedures.

In contrast, the minority submissions argued that public interviews remain an indispensable safeguard for ensuring transparency, upholding meritocracy and maintaining public confidence in the judiciary. They cautioned that transitioning to a Presidential appointment process would dilute existing constitutional protections designed to insulate the judiciary from excessive Executive influence. By reducing the role of the JSC to a purely advisory capacity, dissenting

voices argued that the amendment would weaken institutional checks and balances. Furthermore, they noted that the proposal deviates from established regional approaches in nations such as Botswana, Namibia, Eswatini and South Africa, where the Judicial Service Commission holds decisive authority over High Court appointments.

4.10.1 Committee's Recommendation

The Committee notes the competing viewpoints regarding executive involvement and public transparency in judicial selections, as well as the regional precedents cited by the public. However, having balanced the objective of administrative efficiency and executive accountability against these concerns, the Committee stands in alignment with the majority view. Accordingly, the Committee recommends the clause for adoption.

4.11. Clause 16: Amendment of Section 212 (Functions of the Defence Forces)

The majority of submissions expressed strong support for the amendment, operating under the view that the proposed changes would effectively limit undue military influence in civilian governance. Those in support of the clause argued that establishing clearer boundaries for the military would safeguard democratic processes and, consequently, prove vital to maintaining long-term national stability.

On the other hand, a minority of submissions raised concerns regarding the broader implications of the change. They cautioned that the amendment could inadvertently and materially weaken the constitutional fidelity obligation of the Defence Forces, potentially diluting the military's foundational commitment to uphold and protect the supreme law of the land.

4.11. 1 Committee's Recommendation

The Committee acknowledges the critical importance of balancing civil-military relations and preserving the constitutional integrity of the armed forces. However, recognising that fortifying democratic governance and securing state stability were paramount public interests, the Committee stands in agreement with the majority. Accordingly, the Committee recommends the clause for adoption.

4.12 Clause 17: Amendment of Section 239 (Functions of the Zimbabwe Electoral Commission)

Members of the public were unanimous in their support for repealing these specific functions from ZEC and reassigning them to the Registrar General. Contributors consistently expressed the view that this institutional realignment would significantly improve administrative efficiency and reduce institutional overload. By divesting ZEC of these secondary duties, the amendment would allow the Commission to focus its resources and attention entirely on its core mandate of conducting and supervising national elections.

During consultations with ZEC, the Committee was informed by the electoral body that clause 17 had repealed its function to accredit observers, but the accreditation of observers was not assigned to any other Agency or body.

4.12.1 Committee's Observations

The Committee reemphasised that the successful execution of this structural shift depends on close, continuous and effective collaboration between ZEC and the newly proposed Zimbabwe Delimitation Commission and the Registrar General to ensure a seamless transfer of relevant duties, operational data and responsibilities. Furthermore, the Committee highlights that comprehensive staff training will be absolutely essential to guarantee that personnel were fully equipped to perform effectively in their newly defined roles.

4.12.2 Committee's Recommendation

The Committee recommends the clause for adoption with an amendment for ZEC to retain the function for the accreditation of observers.

4.13 Clauses 18 and 19: Repeal of the Zimbabwe Gender Commission and Amendment of Section 243 (Zimbabwe Human Rights Commission)

The majority of submissions supported the proposed repeal of the provisions establishing the Zimbabwe Gender Commission and the subsequent transfer of its responsibilities to a specialized department under the Zimbabwe Human Rights Commission (ZHRC). The submissions supporting the repeal of the provision argued that this consolidation would eliminate the duplication of institutional mandates, optimise resource utilization and foster a more integrated, holistic approach to the protection of human rights within the country.

On the contrary, the minority, which included submissions from officials of the Zimbabwe Gender Commission itself, strongly cautioned against the merger. They argued that absorbing

gender portfolios into a broader human rights framework risks inducing "gender blindness," where the specific needs of women and girls were overshadowed by general human rights concerns. They warned that the dissolution of a standalone entity would weaken dedicated oversight and reduce focused attention on systemic gender inequalities, gender-based discrimination and gender-responsive governance. The Zimbabwe Gender Commission contended that the fiscal benefits of a merger would be negligible, as it has historically operated on just 0.02% to 0.04% of the National Budget.

Furthermore, the minority stressed that dismantling the Commission could reverse historic gains and cause significant reputational damage, portraying Zimbabwe as backsliding on its commitments to gender equality. They noted that the standalone Gender Commission directly fulfills the nation's international obligations under the 1995 Beijing Declaration and Platform for Action, as well as the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW), which emphasise the need for high-level, specialized national machineries for the advancement of women.

Their submissions emphasized that a dedicated commission remains best placed to demand accountability and track commitments across all government ministries, departments and agencies. Members of the public similarly expressed fear that, without a specialised monitoring body, public and private institutions could more easily evade accountability for gender-based discrimination.

4.13.1 Committee's Observation

The Committee acknowledges that the majority of the submissions were in support of the clause regarding the need to repeal the provision and incorporate the Zimbabwe Gender Commission into the Zimbabwe Human Rights Commission. There were however, concerns by some stakeholders especially women's organisations that gender issues still require a specialised standalone institution in line with the requirements under CEDAW and to ensure continued gender mainstreaming in the country.

4.13.2 Committee's Recommendation

The Committee recommends that the Zimbabwe Gender Commission should remain in place and the clause should not be adopted.

4.14 Clause 20: Amendment of Section 259 (Appointment of the Prosecutor-General)

The majority of submissions expressed strong support for the proposed amendment to Section 259 regarding the appointment of the Prosecutor-General. Submissions consistently pointed out that the changes would streamline the selection and appointment procedures, thereby significantly enhancing administrative efficiency within the justice system.

4.14.1 Committee's Recommendation

Recognizing the clear operational benefits of a more responsive and streamlined appointment framework, the Committee stands in agreement with the consensus of submissions. Accordingly, the Committee recommends Clause 20 for adoption.

4.15 Clause 21: Amendment of Section 281 (Principles to be observed by Traditional Leaders)

The majority of public submissions supported the amendment allowing traditional leaders to participate in political activities. The public, including several traditional leaders themselves, expressed the view that as an integral part of the Zimbabwean citizenry, traditional leaders should enjoy the same fundamental political rights as ordinary citizens. The public submitted that their active involvement would enhance inclusivity, strengthen community representation and accelerate development at the local level, while simultaneously promoting and safeguarding cultural heritage.

On the contrary, the minority view, supported by a submission from the Chiefs' Council, steadfastly opposed the amendment. They argued that the existing constitutional prohibition on political participation was a vital safeguard that insulates the institution of traditional leadership from political manipulation, thereby protecting its integrity and independence as enshrined in Section 283(c)(iv) of the Constitution. The Chiefs' Council cautioned that political involvement would compromise the neutrality expected of traditional leaders, thereby risking deep social divisions and expose vulnerable rural populations to discrimination on political grounds. Furthermore, concerns were raised that political partisanship would distort the administration of justice within communal areas, fostering political intolerance and raising the spectre of reprisals against dissenting community members.

In addition, the Chiefs' Council highlighted that engaging in political activities would directly violate the constitutional mandates requiring traditional leaders to act impartially and

forbidding them from political alignment in their capacity as judicial officers as espoused in sections 163(1)(f) and 165(4)(a) as read together with section 283(c)(iv) of the constitution.

In addition, the Chief's Council submitted that there was need for an amendment to section 285(6) of the Constitution to align the term of office for the President and Deputy President of the National Council of Chiefs with that of the Presidential and Parliamentary terms as proposed in clauses 4 and 9 of the Bill. In fact, the Chiefs' Council advocated for an amendment of clause 21 of the Bill to provide for the repealing of Section 285(6) of the Constitution of Zimbabwe to remove all prescribed term limits for both the President and the Deputy President of the National Council of Chiefs. In their view, this amendment will align the tenure of the Council's leadership with that of Members of Parliament, who serve without constitutional term restrictions.

4.15.1 Committee's Observations

The Committee noted the contradiction between the right of traditional leaders to participate in political activities as proposed in clause 21 and the institutional imperative of traditional leaders' neutrality, particularly regarding their roles as judicial officers in terms of sections 163(1)(f) and 165(4)(a) of the Constitution.

4.15.2 Committee's Recommendation

While the majority of traditional leaders and the general public supported the provision regarding the participation of traditional leaders in politics, the proposed amendment is in conflict with sections 163(1)(f) and 165(4)(a) of the Constitution and as such the status quo should remain. Secondly, the Committee recommends for the alignment of the electoral cycles for the President and Deputy President of the National Council of Chiefs from five to seven years as per the proposed parliamentary and presidential terms.

4.16 Clause 22: Repeal of Part 6 of Chapter 12 (National Peace and Reconciliation Commission)

The majority of submissions expressed support for the proposed repeal of Part 6 of Chapter 12, operating under the view that the National Peace and Reconciliation Commission (NPRC) has successfully fulfilled its mandate and outlived its operational purpose. The public argued that because the country currently enjoys widespread peace and stability, the institutional necessity for a dedicated, standalone reconciliation commission has diminished.

A minority of submissions strongly advised against the repeal. They expressed the view that dismantling the constitutional framework that established the NPRC is premature and undesirable. Submissions cautioned that removing the Commission risks undermining ongoing, sensitive community reconciliation processes and could be perceived as a weakening of Zimbabwe's national commitment to transitional justice, institutional accountability and long-term national healing.

4. 16. 1 Committee's Recommendation

The Committee acknowledged the competing views regarding the optimal timeline for transitional justice institutions and notes the concerns raised regarding the continuity of healing processes. However, taking into account the prevailing environment of peace and the majority consensus that the Commission has completed its primary objectives, the Committee stands in alignment with the supportive submissions. Accordingly, the Committee recommends Clause 22 for adoption. The Committee also noted that this was a procedural matter since the commission had ceased to exist in 2023 when its term ended. The Commission's timeline was limited to ten years in the current constitution.

5.0 Conclusion

Generally, the Joint Committee was in support of the Bill and urges the two Houses to consider the proposed recommendations. In its analysis the Joint Committee sought to ensure that there was consistency between the Bill's provisions and the Constitution as well as aligning with the expectations and aspirations of the people and regional and international best practices.

ANNEXURES

WRITTEN SUBMISSIONS BROUGHT TO PARLIAMENT

TABLE 1

DATE By 18 May 2026	GRAND TOTAL	YES, WITH REASONS	YES, WITHOUT REASONS	NO, WITH REASONS	NO, WITHOUT REASONS
Totals	**470 117**	**229 600**	**238 362**	**1 887**	**4**

WRITTEN SUBMISSIONS TO PARLIAMENT BY EMAIL

TABLE 2

DATE By 18 May 2026	Sub-Totals	Number of Submissions in Support of the Bill	Number of Submissions against the Bill
Totals	**2 232**	760	1472

TABLE 3: PROVINCIAL ATTENDANCE

Province	Total Attendees	Male	Female	Persons with Disabilities
Harare Metropolitan	11 039	3 209	7 830	765
Mashonaland Central	7 407	3 539	3 868	246
Masvingo	5 847	2 553	3 294	401
Mashonaland West	5 730	2 944	2 786	349
Bulawayo Metropolitan	5 400	2 100	3 300	1
Manicaland	5 358	1984	3374	299
Midlands	4 286	2 223	2 063	171
Mashonaland East	3 558	1 491	2 067	167
Matabeleland North	2 911	1 245	1 666	35
Matabeleland South	2 695	832	1 863	51
Grand Total	**54 231**	**22 120**	**32 111**	**2485**

PROVINCIAL WRITTEN SUBMISSIONS TABLE 4

Province	Total	Yes, with Reasons	Yes, without Reasons	No with Reasons	No without Reasons
Harare Metropolitan	42 503	41 286	1 076	133	8
Mashonaland Central	2 240	2 218	16	6	0
Masvingo	13 369	13 105	264	0	0
Mashonaland West	1 208	658	550	0	0
Bulawayo Metropolitan	342	287	45	3	7
Manicaland	1837	1717	74	39	7
Midlands	1597	1511	86	0	0
Mashonaland East	2 697	2 482	44	171	0
Matabeleland North	787	780	0	5	2
Matabeleland South	1108	1102	1	5	0
Grand Totals	67 688	65 146	2 156	362	24

SUMMARY OF WRITTEN SUBMISSIONS

TABLE 5

	Sub-Totals	**Number of Submissions in Support of the Bill**	**Number of Submissions against the Bill**
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